THE BENGAL GHATWALI LAND ACT, 1859

ARRANGEMENT OF SECTIONS

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1. Ghatwals of Beerbhoom to have the same right of granting leases as is allowed to other proprietors of lands.
2. Court of Wards and Revenue authorities to have the like power in certain causes.

IndiaCode

THE BENGAL GHATWALI LANDS ACT, 1859

ACT NO. V OF 1859

Passed by the Legislative Council of India

(*Received the assent of the Governor General on the* 4*th March*, 1859.)

An Act to empower the holder of Ghatwalee lands in the District of Beerbhoom to grant leases extending beyond the period of their own possession.

Preamble.—WHEREAS it has been held that the Ghatwals of the District of Beerbhoom who pay the revenue of their lands directly to Government under the provisions of Regulation XXIX. 1814 of the Bengal Code have not the power of alienating their lands; and whereas, for the development of the mineral resources of the country in which the said Ghatwalee lands are situate, and for the improvement of the said lands, it is expedient that the power of granting leases for periods not limited by the term of their own possession, should in certain cases be extended to the possessors of such lands; It is enacted as follows: —

I. Ghatwals of Beerbhoom to have the same right of granting leases as is allowed to other proprietors of lands.—Ghatwals holding lands in the District of Beerbhoom under the provisions of the aforesaid Regulation, shall have the same power of granting leases for any period which they may deem most conducive to the improvement of their tenures, as is allowed by law to the proprietors of other lands.

Proviso. Provided that no lease of Ghatwalee lands for any period extending beyond the life-time or incumbency of the grantor of the lease shall be valid and binding on the successors of the grantor, unless the same shall be granted for the working of mines, or for the clearing of jungle, or for the erection of dwelling houses or manufactories, or for tanks, canals, and similar works; and shall be approved by the Commissioner of the Division, such approval being certified by an endorsement on the lease under the signature of the Commissioner.

II. Court of Wards and Revenue authorities to have the like power in certain cases. —If any of the said Ghatwalee lands be at any time under the superintendence of the Court of Wards, or otherwise subject to the direct control of the Officers of Government, it shall be lawful for the Court of Wards or the Commissioner to grant leases for any such purpose as aforesaid; and every lease so granted shall be valid and binding on all future possessors of the said lands, anything in the existing law to the contrary notwithstanding.